
CIVIL LITIGATION TEMPLATES

Comprehensive Civil Litigation Forms and Precedents

Ref: CLT/2026/001

THIS AGREEMENT is made on this _____ day of _____, 20____

BETWEEN:

1. NYAERA OGEKA & CO. ADVOCATES

Compilation of civil litigation templates for use in Kenyan courts

2. THE REPUBLIC OF KENYA

Jurisdiction of the High Court of Kenya and subordinate courts

NOW THEREFORE, the parties agree as follows:

1. PLAINT

FORM 2A — PLAINT (Order 4, Rule 1): IN THE HIGH COURT OF KENYA AT NAIROBI. CIVIL SUIT NO. _____ OF 2026. BETWEEN: [PLAINTIFF] — AND — [DEFENDANT]. The Plaintiff's claim against the Defendant is for: (a) KES [amount] being money due and payable; (b) Interest at court rates; (c) Costs of this suit.

2. DEFENCE

FORM 2B — DEFENCE (Order 2, Rule 6): The Defendant: (a) Admits paragraph [x] of the Plaintiff; (b) Denies paragraph [y] of the Plaintiff; (c) Does not admit paragraph [z] of the Plaintiff and puts the Plaintiff to strict proof thereof.

3. COUNTERCLAIM

FORM 2C — COUNTERCLAIM (Order 7, Rule 3): The Defendant further claims against the Plaintiff: (a) KES [amount] being damages for breach of contract; (b) Interest at court rates; (c) Costs of the counterclaim.

4. REPLY TO DEFENCE

FORM 2D — REPLY TO DEFENCE (Order 7, Rule 10): The Plaintiff joins issue with the Defendant on the Defence and puts the Defendant to strict proof of all allegations contained therein.

5. LIST OF WITNESSES

FORM 3A — LIST OF WITNESSES (Order 3, Rule 2): The Plaintiff/Defendant intends to call the following witnesses: 1. [Name], [ID No.], [Address]; 2. [Name], [ID No.], [Address].

6. LIST OF DOCUMENTS

FORM 3B — LIST OF DOCUMENTS (Order 3, Rule 2): The Plaintiff/Defendant intends to rely on the following documents: 1. [Description of document]; 2. [Description of document].

7. SUMMONS TO ENTER APPEARANCE

FORM 4 — SUMMONS TO ENTER APPEARANCE (Order 5, Rule 1): To: [Defendant]. You are required within fifteen (15) days after service of this summons to enter an appearance in the above suit.

8. NOTICE OF MOTION

FORM 5 — NOTICE OF MOTION (Order 51, Rule 1): TAKE NOTICE that this Honourable Court will be moved on [date] at [time] for orders: (a) That [specific order sought]; (b) That costs be provided for.

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9. SUPPORTING AFFIDAVIT

FORM 6 — SUPPORTING AFFIDAVIT (Order 19, Rule 1): I, [Name], of [Address], make oath and state as follows: 1. That I am the [Applicant/Respondent] herein. 2. That the facts deponed to herein are within my personal knowledge and are true and correct.

10. CERTIFICATE OF URGENCY

FORM 7 — CERTIFICATE OF URGENCY (Practice Direction): I certify that this matter is urgent for the following reasons: [state reasons]. The same cannot await the normal hearing date.

11. DRAFT ORDER

FORM 8 — DRAFT ORDER (Order 21, Rule 8): UPON READING the application dated [date] and the affidavit of [name] sworn on [date]; IT IS HEREBY ORDERED: 1. That [order]. 2. That costs be [borne by/paid to].

12. BILL OF COSTS

FORM 9 — BILL OF COSTS (Schedule 6, Advocates Remuneration Order): IN THE [COURT] AT [VENUE]. BILL OF COSTS BETWEEN [PARTIES]. Instructions fee: KES [amount]. Getting up fee: KES [amount]. Attendances: KES [amount]. Total: KES [amount].

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SCHEDULES

Schedule 1: Practice Directions

All templates comply with the Civil Procedure Rules, 2010 (Legal Notice No. 151 of 2010) and the Practice Directions issued by the Chief Justice.

Schedule 2: Filing Fees

Current court filing fees as per the Judicature Act (Cap 8) and the Court Fees (Amendment) Order, 2022.

Schedule 3: Limitation Periods

Reference table of limitation periods under the Limitation of Actions Act, Cap 22 Laws of Kenya.

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This page forms part of the above-mentioned agreement.

IN WITNESS WHEREOF, the parties have executed this agreement on the date first above written.

SIGNED by the said _____

In the presence of: _____

Name: _____

ID/Passport: _____

Signature: _____

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